

24CV00291 Lee Ann Morgan vs HipCamp Inc et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-12

Motion: CMC; Motion for Leave

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Tentative Ruling: Lee Ann Morgan vs HipCamp Inc et al

Case Number

24CV00291

Case Type

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Hearing Date / Time

Fri, 06/12/2026 - 10:00

Nature of Proceedings

CMC; Motion for Leave

Tentative Ruling

Plaintiff LeeAnn Morgan filed her original complaint against defendants HipCamp, Inc. (HipCamp), Freedog Farms @ Cactus Flower Ranch, LLC (Freedog), Sierra Fiechter, and Darin Fietcher on January 22, 2024, asserting causes of action arising out of premises liability. On March 7, 2024, without any response having been filed, Morgan filed her first amended complaint (FAC), which corrected the name of defendant Sierra Fiechter to Sierra Falso. On April 23, 2024, HipCamp filed its answer to the FAC, generally denying the allegations thereof and asserting 37 affirmative defenses.

On August 9, 2024, the court sustained demurrers of Freedog, Falso, and Fiechter with leave to amend. On August 23, 2024, Morgan filed her second amended complaint (SAC) omitting Darin Fietcher as a defendant. On December 20, 2024, the court sustained demurrers of Hipcamp, Falso, and Freedog, without leave to amend, leaving only the first (negligence) and second (premises liability) causes of action. On January 15, 2025, HipCamp, Falso, and Freedog filed their respective answers to the SAC. On February 24, 2025, Morgan requested, and the court entered, dismissal with prejudice as to Falso and Freedog.

On February 23, 2026, Morgan filed this motion for leave to file a third amended complaint (TAC). The motion is opposed by HipCamp. No trial date has yet been set.

“ ‘The court may, in furtherance of justice and on any terms as may be proper, allow a party to amend any pleading....’ [Citation.] However, the court’s discretion will usually be exercised liberally to permit amendment of the pleadings. [Citations.] The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)

Morgan makes this motion in order to “refine the facts” and to assert new acts of negligence learned in discovery after the filing of the SAC. (Morgan decl., ¶¶ 2-3.) HipCamp argues that the motion fails to identify specific changes in the TAC from the SAC in violation of California Rules of Court, rule 3.1324, that Morgan delayed filing the request, and that the TAC allegations are without merit. HipCamp acknowledges that “[t]he proposed amendments to Plaintiff’s Second Amended Complaint do not contain any substantive changes to her theories of liability against Defendant HIPCAMP” (Eschenburg decl., ¶ 4.)

Under the circumstances here, particularly where there is no trial date, the court does not find that HipCamp has shown prejudice sufficient to deny the motion. Morgan’s motion is sufficiently detailed to identify the proposed pleading changes. By its opposition, HipCamp clearly understands the nature and basis for the proposed amended pleading and has filed substantive opposition. To the extent that HipCamp asserts that the claims lack merit, that assertion is more properly made in the motion for summary judgment HipCamp intends to file (see Opposition, at p. 6, fn. 1) or some other procedural vehicle to challenge the merits of the claim. The motion for leave to file an amended complaint is granted. Morgan shall file and serve the TAC, in substantially the same form as attached to the motion, on or before June 22, 2026.

Judges

Judge Donna D. Geck

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